



# Superior Court of California County of San Benito

## Tentative Decisions for August 20, 2026

**Courtroom #1: Judge J. Omar Rodriguez**

**CU-25-00186      Hazleton, Laurel vs. Sierra Golf Operations LLC**

The Case Management Conference is continued to September 17, 2026 at 1:30 p.m. to be heard along with the Motion to Compel Arbitration and Stay Proceedings.

**CU-25-00304      Unity Courier Service, Inc. vs. Budget Truck Rental, LLC**

Defendant, Budget Truck Rental, LLC's ("Defendant") Motion to Vacate and Set Aside Entry of Default is GRANTED. Defendant shall file and serve a responsive pleading within 10 days of this order. A case management conference is scheduled to take place on October 22, 2026 at 1:30 p.m.

The court has authority to set aside default and default judgment when the entry of the same was caused by the mistake, inadvertence, surprise, or neglect of a party's attorney. (Cal. Code Civ. Proc. §473(b).) Similarly, a default and default judgment may be set aside when it was caused by the mistake, inadvertence, surprise, or excusable neglect of the defendant or some other third party. The distinction is that the set aside of the default for the mistake, inadvertence, surprise, or neglect of an attorney is, upon proper declaration of the attorney, mandatory, whereas set side in the other instance is discretionary for the court. Additionally, a default and default judgment may be set aside when the default or default judgement is void. (Cal. Code Civ. Proc. v§473(d).)

The court has inherent equitable power to set aside the default and default judgment where they were entered as a result of extrinsic fraud or mistake. There are strict timelines in

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**\*\*Please contact Judicial Courtroom Assistant, Lesley Pace, at  
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any objections or concerns.**